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2026.PHHC.087392



IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH

CRM-M-33146-2026
Decided On: 12.06.2026

ASHIT @ ANKIT

....PETITIONER(S)

VERSUS

STATE OF HARYANA

....RESPONDENT(S)

CORAM: HON'BLE MR. JUSTICE SANDEEP MOUDGIL

Present: Ms. Neeru Bansal, Advocate for the petitioner

SANDEEP MOUDGIL, J. (ORAL)

1. Prayer

The jurisdiction of this Court has been invoked under Section 482 of the BNSS, 2023 for grant of anticipatory bail to the petitioner in FIR No.138 dated 22.05.2026 under Sections 110, 115, 351(3) and 3(5) of BNS, 2023 registered at Police Station City Sonipat, District Sonipat, Haryana.

2. Contention

On behalf of the petitioner

Learned counsel for the petitioner contends that the petitioner has been falsely roped in the present case. It is submitted that, apart from the allegation of his presence at the place of occurrence, no specific role or overt act has been attributed to him. In particular, no allegation has been levelled that the petitioner caused or participated in causing the grievous injuries allegedly suffered by the complainant. It is further submitted that the petitioner is ready

and willing to join the investigation and extend full cooperation to the Investigating Agency.

Notice of motion.

On behalf of the State

On the asking of the Court, Mr. Ved Parkash, Sr. DAG Haryana accepts notice on behalf of the respondent–State and opposes the prayer made by learned counsel for the petitioner on the ground that the petitioner, along with the co-accused, inflicted injuries upon the complainant with iron rods and an axe. Learned State counsel has also placed reliance upon the Medico-Legal Report (MLR) of the injured in support of the prosecution case.

3. Analysis

In the present case, admittedly, no specific role has been attributed to the petitioner in the FIR. Even during the course of hearing, learned State counsel was unable to substantiate or elaborate any such allegations against the petitioner so as to persuade this Court to decline the concession of anticipatory bail at this stage.

A perusal of the FIR, coupled with the candid statement made by learned State counsel that the main accused Ashish, along with others, inflicted multiple blows, further indicates that no specific incriminating material has been brought on record against the petitioner. It has also not been submitted that any recovery is to be effected from the petitioner. Additionally, the petitioner has undertaken that he is ready and willing to join the investigation and shall fully cooperate with the Investigating Agency in its further conduct.

In view of the above circumstances, this Court finds no reason to decline the present petition.

4. Relief:-

Hence, the petitioner is directed to be released on anticipatory bail subject to his joining investigation with the Investigating Officer concerned within a period of one week from today, on furnishing of personal/surety bonds to his satisfaction. The petitioner shall also abide by the terms and conditions as envisaged under Section 482(2) of BNSS, which are reproduced below:-

‘When the High Court or the Court of Session makes a direction under sub-section (1), it may include such conditions in such directions in the light of the facts of the particular case, as it may think fit, including-

(i) a condition that the person shall make himself available for interrogation by a police officer as and when required;

(ii) a condition that the person shall not, directly or indirectly, make any inducement, threat or promise to any person acquainted with the facts of the case so as to dissuade him from disclosing such facts to the Court or to any police officer;

(iii) a condition that the person shall not leave India without the previous permission of the Court;

(iv) such other condition as may be imposed under sub-section (3) of section 480, as if the bail were granted under that section.’

However, it is made clear that in case the petitioner does not comply with the aforesaid direction of joining the investigation within a period of one week, the order passed by this Court today shall automatically stands cancelled.

In the aforesaid terms, the present petition stands allowed.

Pending application(s), if any shall disposed off, accordingly.

(SANDEEP MOUDGIL)
JUDGE

12.06.2026

NainaRajput

Whether speaking/reasoned

:Yes/No

Whether reportable

:Yes/No